



Bill To

Billing info change - please update your records

GENER8 Accounts Payable
5975 Castle Creek Pkwy N. Dr.
Suite 250
apgroup@gener8.net
Indianapolis, IN 46250-2781
UNITED STATES

Purchase Order	Revision	Order Date
P70909	0	8/23/2023
Supplier	Print Date	
INTZZ03	8/23/2023	

Purchase Order

Supplier

Intertek Testing Services N.A. Inc
3933 US Route 11
Cortland, NY 13045
UNITED STATES
+1-613-599-6626

Ship To

Gener8 LLC
2560 Junction Ave
San Jose, CA 95134
UNITED STATES

Buyer Mandy Nguyen		Attention +1-613-599-6626
Credit Terms Due on Receipt	FOB Origin	Ship Via PrePay & Add
Remarks Quotes attached	Project 13403	

Gener8 PO & Part Number to be referenced on all packing lists & invoices.

1. Include RoHS 3 certificate required with shipment
2. Include CoC required with shipment.
3. Include Materials Certificate if applicable.
4. Include Plating Certificate if applicable.
5. Include FAIR (1st Article Insp Report) if applicable.
6. Include Packing slip

PLEASE EMAIL ALL INVOICES TO : apgroup@gener8.net

Mail to :

ACCOUNTS PAYABLE
5975 CASTLE CREEK PKWY N DR, STE 250
INDIANAPOLIS, IN 46250
(800) 338-4105 x55012

Line	Item Number	Rev	Need Date	qty_ord	UM	T	Unit Cost	Extended Cost
1	EMC Testing		8/31/2023	1.0	EA	N	24,050.00	24,050.00
-								
*Per quote# Qu-01384314-3								
2	EMC testing		8/31/2023	1.0	EA	N	11,400.00	11,400.00
-								
*Per Quote# Qu-01384746-0								
3	Safety Testing		8/31/2023	1.0	EA	N	21,350.00	21,350.00
-								
*Per Quote# Qu-01382686-0								
USD							Line Total	56,800.00
							Total Tax	0.00
							Total Amount	56,800.00

Gener8 Purchase Order Terms and Conditions

1. **TERMS AND CONDITIONS.** No terms and conditions other than the terms and conditions set forth in this Order, including any terms and conditions in any document attached hereto or incorporated by reference, shall be binding upon Gener8 unless accepted by it in writing and signed by Gener8. Notwithstanding any other provision of this Order, Gener8 expressly reserves the right to revoke this Order at any time prior to receipt of notice of acceptance by Seller. All terms and conditions contained in any prior proposal or acknowledgement of this Order which are different from or in addition to the terms and conditions of this Order are hereby rejected and shall not be binding on Gener8, whether or not they would materially alter this Order, and Gener8 hereby objects thereto. Seller will be deemed to have assented to all terms and conditions contained herein if any part of the good ("Products") and/or services ("Services") (collectively "Goods") covered by this Order is shipped or an invoice is presented in connection with said Goods.
2. **PRICE.** Unless otherwise approved in writing by Gener8, prices for all Goods are as noted on this Purchase Order. If no price is specified herein, the price shall be either the price last quoted or paid or the Seller's standard price for merchandise of like quality and quantity, whichever is lower.
3. **QUANTITY.** Gener8's count will be accepted as final and conclusive on all shipments not accompanied by a packing list. Unless expressly provided for to the contrary on the face of this Order, all shipments are to be made F.O.B. destination, and the Seller shall bear all cost for cartage, boxing, or containers as required.
4. **SHIPMENT.** All material shall be properly packed for shipment. Seller shall comply with Gener8's standard routing and shipping instructions issued by Gener8. If such instructions are not attached hereto or have not been previously received, instructions must be requested from Gener8 immediately. No additional charge will be allowed for packing, crating, freight, express or cartage unless specified on the face of the Order. Any loss or damage, whenever occurring, which results from Seller's improper packaging or crating shall be borne by Seller. All items shall be properly identified with Gener8's Order number releasing shipments against this Order and the Order item number or other identification number shown.
5. **DELIVERY.** Time is of the essence. Delivery of all Goods must be made in accordance with the schedule set forth in this Purchase Order. If delivery is not timely, Gener8 may cancel this Purchase Order in its entirety (or as to Goods not delivered on time) upon written notice to the Seller. Gener8 will have no liability for any damage resulting directly or indirectly from such cancellation. Goods shipped to Gener8 in advance of delivery schedules may be rejected or returned at the Seller's expense. If the Goods are not delivered in accordance with the schedule set forth in this Purchase Order, Gener8 reserves the right to cancel the contract in whole or in part and to recover from the seller any expenditure reasonable incurred by Gener8 in obtaining the Goods in substitution from another supplier.
6. **OWNERSHIP**
 - a. All tools, dies, specifications, drawings, designs or other property furnished or paid for by Gener8 in connection with a Purchase Order ("Gener8 Property") will (i) be and remain the tangible and intellectual property of Gener8, marked as such and kept segregated from other property, (ii) be used only by the Seller and only in performance of the Purchase Order, (iii) not be moved from Seller's premises without Gener8's written consent, (iv) be kept free of all liens, claims, encumbrances and restrictions, and (v) not be modified or altered by Seller or any other person. Seller will bear all risk of loss or damage to Gener8 Property until it is returned to Gener8. Upon Gener8's request, Seller will deliver at its expense all Gener8 Property in good condition, ordinary wear and tear excepted, to Gener8 at any location designated by Gener8. Seller waives any legal or equitable rights or claims in connection with Gener8 Property.
 - b. Seller shall and hereby does assign to Gener8 all rights, title and interest in any and all intellectual property rights with respect to any inventions (whether or not patentable), works of authorship, mask works, designations, designs, know-how, drawings, information, ideas or expressions of ideas that Seller conceives, reduces to practice or otherwise creates in performing any Services or providing any Products pursuant to a Purchase Order.
7. **WARRANTIES.** Seller represents and warrants that: (a) it has and is conveying to Gener8 clear and marketable title to all Products provided hereunder, free from all liens and encumbrances; and (b) all Goods furnished under this Purchase Order will (i) be free from defects in design, materials and workmanship, (ii) be of merchantable quality, (iii) conform strictly to the Specifications, (iv) be fit and sufficient for their intended purposes, (v) comply with all applicable laws, rules and regulations, (vi) not violate or infringe upon any intellectual property right or any other right or interest, and (vii) all Goods may be freely exported outside of the United States without restriction or license. Seller also represents and warrants that it will perform the Services (if any) in accordance with industry standards except to the extent a higher standard is specified herein, in which case the higher standard apply. All warranties will survive any inspection, acceptance, delivery, payment and termination of the Purchase Order and will inure to the benefit of Gener8 and its successors, assigns and customers. Nothing herein will limit any other warranties, express or implied, available to Gener8 under applicable law. "Specifications" means any and all specifications, drawings, samples, models, diagrams, bulletins, engineering sheets or other materials relating to the Goods, and which are included or referenced herein or provided hereunder.

8. LIMITED LIABILITY. GENER8 WILL NOT BE LIABLE TO SELLER FOR ANY LOST PROFITS OR BUSINESS, OR FOR ANY SPECIAL, INCIDENTAL, INDIRECT, PUNITIVE OR CONSEQUENTIAL DAMAGES ARISING OUT OF OR IN CONNECTION WITH THE PURCHASE ORDER AND GOODS PURCHASE HEREUNDER. IN NO EVENT WILL GENER8'S TOTAL LIABILITY FOR DAMAGES TO THE SELLER EXCEED, AND GENER8'S AGGREGATE LIABILITY WILL BE STRICTLY LIMITED TO, THE PURCHASE PRICE FOR THE PRODUCT OR SERVICE WHICH GIVES RISE TO GENER8'S LIABILITY.

9. CONFIDENTIAL INFORMATION. Except as otherwise provided in this paragraph, Gener8 and Seller agree that all business, technical and financial information Seller obtains from Gener8 that is designated as confidential or proprietary in writing, or is disclosed in such a manner that a reasonable person would understand the nature and confidentiality of the information disclosed, is and will be the confidential property of Gener8 and its licensors ("Confidential Information"). This Purchase Order will be treated as Confidential Information of Gener8. Confidential Information will not include information that (a) was previously rightfully known to the Seller without restriction on disclosure, (b) hereafter becomes known to the general public, through no act or omission on the part of the Seller, (c) is hereafter disclosed to the Seller by a third party without breach of any separate nondisclosure obligation or (d) is independently developed by the Seller without reference or access to the Confidential Information. Except as reasonably necessary to perform its obligations hereunder, Seller shall not use or disclose any Confidential Information without first obtaining Gener8's express written consent. Seller will use the highest degree of care to protect the Confidential Information from any unauthorized use or disclosure.

10. PAYMENT. Upon submission of proper invoices, Gener8 shall pay the Order price set forth herein for Goods delivered and accepted; however, payment may be withheld or portions thereof deducted or set-offs made against Seller if Seller is not performing work in accordance with the provisions of this Order. There will be no minimum charges honored unless specifically agreed to prior to shipment. Shipments consigned directly to Gener8's customers that are shipped after the twentieth (20th) shall be considered as invoiced the following month.

11. IDENTIFICATION AND INSPECTION. GENER8'S PURCHASE ORDER NUMBER MUST SHOW ON ALL INVOICES, PACKING LIST, AND BILLS OF LADING. All Goods are subject to Gener8's inspection, testing and acceptance at the destination. Gener8 will have a commercially reasonable time after delivery of the Products to inspect and conduct acceptance tests with respect to all Goods. Acceptance of any installment will not be deemed acceptance of Gener8's entire order or any subsequent installment. Any acceptance of Goods is conditioned upon the Seller's cure of any nonconformity identified by Gener8. Failure of Gener8 to reject any Goods shall not constitute a waiver of its legal rights (including the right to revoke acceptance) if Gener8 subsequently discovers such Goods are non-conforming. Upon rejection of any Products, Gener8 may return such Products to Seller, at Seller's risk and expense, and require Seller to promptly replace the non-conforming Products. Seller may not charge any restocking, handling or other fee or charge in connection with rejected Goods.

12. CHANGES.

a. Gener8 may from time to time, by written instructions or drawings issued to the Seller, make changes, issue additional instructions, require additional work, or direct the omission of work previously ordered. The provisions of this agreement shall apply to all such written modifications. No extra work, additions, or alterations will be paid for by Gener8 unless performed pursuant to and in accordance with the written order of Gener8. Gener8 may cancel this order at any time, giving notice in writing. An equitable adjustment in price and/or delivery schedule will be negotiated for materials completed or in process at the time of the change.

b. Seller shall obtain prior written approval from Gener8 for changes that may affect Product form, fit or function. Examples of changes requiring prior approval include, but are not limited to, new or modified production processes, equipment, materials and tooling, and end of life notifications. Additionally, supplier shall inform Gener8 of significant changes e.g., changes in ownership or key personnel, relocation of or significant modification to manufacturing site, significant quality system changes and compliance status.

13. TERMINATION.

a. Gener8 shall have the right at any time and for any reason to terminate the Order in whole or in part by giving the Seller written notice whereupon all work on the Order shall be discontinued and Gener8 shall pay to the Seller fair and reasonable compensation for the work-in-progress at the time of termination, but such compensation shall not include, and Seller shall not be entitled to recover, loss of anticipated profits or any incidental or consequential damages.

b. Gener8 may by notice in writing direct Seller to terminate this Purchase Order or work under this Purchase Order in whole or in part at any time for breach of any one of more of its terms. In the event of Seller's default hereunder, Gener8 may exercise any and all rights accruing to it.

c. Seller's obligations under the warranty, patent and confidentiality provisions of this Purchase Order shall survive such termination.

14. INDEMNIFICATION. The Seller agrees to defend, indemnify and hold harmless Gener8 from and against all liability, loss and expense (including legal fees) for all damages and/or bodily injuries (including deaths) resulting from the actions, errors, omissions or negligence of the Seller, its directors, officers, employees, agents, contractors or subcontractors, include, but not limited to, any defect in material, any defect in services, workmanship, design of any Goods furnished, patent and/or copyright infringements or violations, and/or failure to follow or abide by this Agreement or any and all governing laws, ordinances, codes and regulations. This indemnity will survive Gener8's acceptance of a payment for the Goods and any termination of the Purchase Order, and will not be limited in any manner by Seller's insurance.

Search Criteria

Purchase Order	equals	P70909
Update	equals	Yes
Open PO's Only	equals	Yes
Unprinted PO's Only	equals	No
Include Scheduled Orders	equals	No
Include EMT Orders	equals	No
Sort PO By	equals	Line
PRINT_LANGUAGE	equals	us